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Natural and Built Environment Bill and Spatial Planning Bill pass third readings

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Yesterday the Natural and Built Environment Bill and Spatial Planning Bill passed their third and final readings in Parliament, and will now become law on royal assent. Effectively, the two Bills replace the Resource Management Act 1991 (RMA), although the new system will lead a complex co-existence with the old one throughout a transitional period over a number of years.

"This is a significant moment in the history of our environmental laws. It is the culmination of many years of policy development, impassioned debate and deep thought both within and outside government," said EDS CEO, Gary Taylor.

"Although the Bills are not perfect – and no legislation ever is – we are hopeful that the system of national direction, plans, spatial strategies and other tools that will come into being under the new framework will provide better outcomes for the natural environment and our society than the RMA has done. The RMA suffered from problems, and as EDS and others outlined in extensive work underpinning the reform effort, it needed to be replaced.

"We will now have promising features that are entirely new – mandatory, integrated national direction in the form of a National Planning Framework, a clearer and more directive statutory framework for area-based protections like significant biodiversity areas, and targets for improvement. Above all, the concept of compulsory environmental limits finally puts to bed the subversive yet strangely persistent idea (even after the Supreme Court case of *EDS v King Salmon*) that fundamental aspects of environmental health might be traded off against short term economic gain," said Mr Taylor.

"The task ahead is still an imposing one," said EDS Policy Director and author of many publications on the reforms, Dr Greg Severinsen.

"The challenge is now one of implementation. Transition will be complex. Many different entities will need to keep their eyes on the ball, notably central government in the creation of an integrated National Planning Framework. Regional planning committees and councils have important roles in preparing strategies and plans.

"There remain places in which concerning exceptions to environmental protections could be made, so decision-makers need to stay vigilant and be held to account by civil society advocates like EDS. Early case law will be critical, so advocacy needs to be strengthened as a key element of implementing the new system. A key lesson from the RMA was that a statute can fail to achieve its purpose if it is not implemented properly from the start.

"Climate change adaptation remains a significant gap, where we await separate legislation to provide the right tools to put in the toolbox.

"Nevertheless, yesterday marks an important milestone, and we acknowledge the Minister, members of the Environment Select Committee, officials and all those who have engaged in the reform process. It has involved a power of work, and some hard conversations. They come at a time where the environment is under more pressure than ever and where, as a society, we need to rethink our relationship with nature. All political parties now need to get behind the implementation effort," concluded Dr Severinsen.

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